

HOUSE BILL 1726

By Hakeem

AN ACT to amend Tennessee Code Annotated, Title 37,
relative to foster care.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Stable Homes for Foster Youth Act."

SECTION 2. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following as a new section:

(a) The general assembly finds and declares that:

(1) The state has a responsibility to protect the safety and well-being of children in the foster care system;

(2) Repeated placement changes and inappropriate temporary housing, including the use of cars, offices, and hotel rooms, lead to severe emotional, psychological, and developmental harm;

(3) Stable, long-term placements increase the likelihood of successful outcomes for foster children, including higher educational attainment, improved mental health, and reduced homelessness;

(4) A lack of sufficient placement options may lead to harmful and unstable temporary placements;

(5) Prioritizing kinship care, foster families, and cottage group homes will create a safer, more supportive environment for foster children; and

(6) The ability to track a foster child's locations in real time ensures the foster child's safety and prevents instances of a child going missing while in custody.

(b) A child in foster care must not be housed in the following conditions, except in emergency situations not exceeding twenty-four (24) hours:

- (1) Vehicles, including cars, vans, and buses;
- (2) State or agency offices; or
- (3) Hotels or motels.

(c) A child in foster care must be placed in one (1) of the following settings:

- (1) A kinship foster care placement, as described in § 37-2-414, with necessary support services to maintain stability;
- (2) A licensed foster family with consistent oversight and support; or
- (3) A group home or small, family-style residential group home with no more than ten (10) children per unit, ensuring access to individualized care and stability.

(d)

(1) A foster child must not be moved more than two (2) times per year unless extenuating circumstances, such as safety concerns or reunification efforts, necessitate the change.

(2) Caseworkers must provide a written explanation for any placement change beyond the initial placement, and the placement change must be approved by a supervisor.

(3) The department of children's services shall promulgate rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to minimize placement disruptions and prioritize stability in accordance with this section.

SECTION 3. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following as a new section:

(a) The department of children's services shall develop and implement a system to track the location of each foster child in real time while the child is in the department's custody.

(b) The tracking system must be designed to ensure privacy protections while maintaining the ability to monitor the safety and whereabouts of foster children at all times.

SECTION 4. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following as a new section:

In addition to the report required by § 37-2-411, the department of children's services shall prepare and issue an annual report detailing the following on a statewide basis:

(1) The number of foster children placed in kinship care, foster families, and cottage group homes;

(2) Instances of prohibited placements under Section 2(b) and corrective actions taken;

(3) Recommendations for further policy improvements; and

(4) The effectiveness of real-time tracking in improving child safety and stability.

SECTION 5. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.